

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 490

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO RECKLESS DRIVING; AMENDING SECTION 49-1401, IDAHO CODE, TO RE-
VISE A PROVISION REGARDING RECKLESS DRIVING; AND DECLARING AN EMERGENCY
AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-1401, Idaho Code, be, and the same is hereby
amended to read as follows:

49-1401. RECKLESS DRIVING. (1) Any person who drives or is in actual
physical control of any vehicle upon a highway, or upon public or private
property open to public use, carelessly and heedlessly or without due cau-
tion and circumspection, and at a speed or in a manner as to endanger or be
likely to endanger any person or property ~~or~~; who passes when there is a line
in his lane indicating a sight distance restriction ~~or~~; or who drives a vehicle
at a speed greater than twenty (20) miles per hour over the posted speed limit
in a school zone or construction zone shall be guilty of reckless driving and
upon conviction shall be punished as provided in subsection (2) of this sec-
tion.

(2) Every person who pleads guilty to or is found guilty of reckless
driving for the first time is guilty of a misdemeanor and may be sentenced to
jail for not more than six (6) months or may be fined not more than one thou-
sand dollars (\$1,000), or may be punished by both fine and imprisonment. Ev-
ery person who pleads guilty to or is found guilty of reckless driving, who
has previously been found guilty of or has pled guilty to reckless driving,
or any substantially conforming foreign criminal violation within five (5)
years, notwithstanding the form of the judgment(s) or withheld judgment(s),
is guilty of a misdemeanor and may be sentenced to jail for not more than
one (1) year or may be fined not more than two thousand dollars (\$2,000), or
may be punished by both fine and imprisonment. The department shall suspend
the driver's license or privileges of any such person as provided in section
49-326, Idaho Code.

(3) Inattentive driving shall be considered a lesser offense than reck-
less driving and shall be applicable in those circumstances where the con-
duct of the operator has been inattentive, careless or imprudent, in light of
the circumstances then existing, rather than heedless or wanton, or in those
cases where the danger to persons or property by the motor vehicle operator's
conduct is slight. Every person convicted of inattentive driving under this
section shall be guilty of a misdemeanor and may be sentenced to jail for not
more than ninety (90) days or may be fined not more than three hundred dollars
(\$300), or may be punished by both fine and imprisonment.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.